

25STCV04650 25STCV04650

County: los-angeles

Division: Civil Law and Motion

Department: 516

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Case Number: 25STCV04650 Hearing Date: September 1, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: September 1, 2026

Case Name: Roman v. A1 Beauty Studio, et al.

Case No.: 25STCV04650

Matter: Motion

to Set Aside/Vacate Judgment (CCP 473)

Moving Party: Defendant

Irma Peralta

Responding Party: Plaintiff Alejandra Roman

Tentative Ruling: Defendant

Irma Peralta's motion is denied.

Plaintiff

Alejandra Roman ("Plaintiff") filed this action against Defendants A1 Beauty Studio ("Studio"), Irma Peralta ("Defendant"), and Does 1 through 20. The Complaint alleged one cause of action for general negligence.

On April

15, 2026, the Court dismissed Studio.

On February

5, 2026, the Court entered an entry of default against Defendant.

On July 24,

2026, the Court entered a judgment by default against Defendant.

Defendant

moves to set aside the default and default judgment entered against her.

Plaintiff opposes.

Legal Standard

Code of

Civil Procedure section 473, subdivision (b) provides for either discretionary or mandatory relief from certain prior actions or proceedings in the trial court. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124.)

“Under the discretionary relief

provision, on a showing of “mistake, inadvertence, surprise, or excusable neglect,” the court has discretion to allow relief from a “judgment, dismissal, order, or other proceeding taken against” a party or his or her attorney. Under the mandatory relief provision, on the other hand, upon a showing by attorney declaration of “mistake, inadvertence, surprise, or neglect,” the court shall vacate any “resulting default judgment or dismissal entered.”

[Citation.] Applications seeking relief under the mandatory provision of section 473 must be ‘accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.’ The mandatory provision further adds that ‘whenever relief is granted based on an attorney’s affidavit of fault [the court shall] direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.’” (*Ibid.*; Code Civ. Proc., § 473, subd. (b).)

Analysis

Defendant

moves for relief pursuant to Code of Civil Procedure section 473, subdivision (b).

In
opposition, Plaintiff argues that Defendant's motion is untimely and the Court
no longer has jurisdiction to provide Defendant with relief.

"The
six-month period for granting relief under section 473, subdivision (b), 'runs
from entry of default, not entry of judgment.'" (Kramer v. Traditional
Escrow, Inc. (2020) 56 Cal.App.5th 13, 39.) "The six-month time limit for
granting statutory relief is jurisdictional and the court may not consider a
motion for relief made after that period has elapsed." (Manson, Iver &
York v. Black (2009) 176 Cal.App.4th 36, 42.)

Here, the
Court entered an entry of default against Defendant on February 5, 2026.
(February 5, 2026, CIV-100.) The six-month period ran until August 5, 2026.
Defendant filed her motion for relief on August 8, 2026. Thus, Defendant's
motion is untimely. Defendant did not file a timely reply to address the issue
raised in the opposition.

Therefore,
Defendant's motion is statutorily barred from relief pursuant to Code of Civil
Procedure section 473, subdivision (b).

Conclusion

Defendant
Irma Peralta's motion to set aside the default and default judgment entered
against her is denied.